Journal of the Senate

WEDNESDAY, MARCH 11, 2026

The Senate was called to order by the President.

Devotional Exercises

Devotional exercises were conducted by the Reverend Peter Plagge of Waterbury.

Bill Referred to Committee on Appropriations

S. 206.

Senate bill of the following title, appearing on the Calendar for notice and carrying an appropriation or requiring the expenditure of funds, under the rule was referred to the Committee on Appropriations:

An act relating to licensure of early childhood educators by the Office of Professional Regulation.

Proposed Amendment to the Constitution Concurred In

Proposed Amendment to the Constitution designated as Proposal 4 having appeared on the Calendar for seven legislative days pursuant to Rule 83,

Was taken up.

Thereupon, Proposal 4 was read the third time and is as follows:

PROPOSAL 4

Sec. 1. PURPOSE

(a) This proposal would amend the Constitution of the State of Vermont to specify that the government must not deny equal treatment under the law on account of a person's race, ethnicity, sex, religion, disability, sexual orientation, gender identity, gender expression, or national origin. The Constitution is our founding legal document stating the overarching values of our society. This amendment is in keeping with the values espoused by the current Vermont Constitution. Chapter I, Article 1 declares "That all persons are born equally free and independent, and have certain natural, inherent, and unalienable rights." Chapter I, Article 7 states "That government is, or ought to be, instituted for the common benefit, protection, and security of the people." The core value reflected in Article 7 is that all people should be afforded all the benefits and protections bestowed by the government, and that

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the government should not confer special advantages upon the privileged. This amendment would expand upon the principles of equality and liberty by ensuring that the government does not create or perpetuate the legal, social, or economic inferiority of any class of people. This proposed constitutional amendment is not intended to limit the scope of rights and protections afforded by any other provision in the Vermont Constitution.

(b) Providing for equality of rights as a fundamental principle in the Constitution would serve as a foundation for protecting the rights and dignity of historically marginalized populations and addressing existing inequalities. This amendment would reassert the broad principles of personal liberty and equality reflected in the Constitution of the State of Vermont with authoritative force, longevity, and symbolic importance.

Sec. 2. Article 23 of Chapter I of the Vermont Constitution is added to read:

Article 23. [Equality of rights]

That the people are guaranteed equal protection under the law. The State shall not deny equal treatment under the law on account of a person's race, ethnicity, sex, religion, disability, sexual orientation, gender identity, gender expression, or national origin. Nothing in this Article shall be interpreted or applied to prevent the adoption or implementation of measures intended to provide equality of treatment and opportunity for members of groups that have historically been subject to discrimination.

Sec. 3. EFFECTIVE DATE

The amendment set forth in Sec. 2 shall become a part of the Constitution of the State of Vermont on the first Tuesday after the first Monday of November 2026 when ratified and adopted by the people of this State in accordance with the provisions of 17 V.S.A. chapter 32.

Thereupon, the pending question, Shall the Senate concur in the adoption by the preceding General Assembly of Proposal 4 for the amendment of the Constitution of the State of Vermont, and request the concurrence of the House? was decided in the affirmative on roll call pursuant to the Vermont Constitution and Rule 83, Yeas, 29 Nays 0 (the necessary majority vote having been attained).

Roll Call

Those Senators who voted in the affirmative were: Baruth, Beck, Benson, Bongartz, Brennan, Brock, Chittenden, Clarkson, Collamore, Cummings, Gulick, Hardy, Harrison, Hashim, Ingalls, Lyons, Major, Mattos, Morley, Norris, Perchlik, Plunkett, Ram Hinsdale, Vyhovsky, Watson, Weeks, Westman, White, Williams.

Those Senators who voted in the negative were: None.

The Senator absent and not voting was: Heffernan.

Bill Amended; Third Reading Ordered

S. 183.

Senator Norris, for the Committee on Judiciary, to which was referred Senate bill entitled:

An act relating to home improvement and land improvement fraud.

Reported recommending that the bill be amended as follows:

In Sec. 1, 13 V.S.A. § 2029, by striking out subsection (b) in its entirety and inserting in lieu thereof a new subsection (b) to read as follows:

(b) A person commits the offense of home improvement or land improvement fraud when the person knowingly enters into a contract, ~~or~~ agreement, or change order, written or oral, for $1,000.00 or more, with an owner for home improvement or land improvement, or into several contracts, ~~or~~ agreements, or change orders for $2,500.00 or more in the aggregate, with more than one owner for home improvement or land improvement, and the person knowingly:

(1)~~(A) fails to perform the contract or agreement, in whole or in part; and~~

~~(B) when the owner requests performance, payment, or a refund of payment made, the person fails to either:~~

~~(i) refund the payment;~~

~~(ii) make and comply with a definite plan for completion of the work that is agreed to by the owner; or~~

~~(iii) make the payment~~ promises performance that the person does not intend to perform or knows will not be performed, in whole or in part;

(2) misrepresents a material fact relating to the terms of the contract, ~~or~~ agreement, or change order or to the condition of any portion of the property involved;

(3) uses or employs any unfair or deceptive act or practice in order to induce, encourage, or solicit such person to enter into any contract, ~~or~~ agreement, or change order or to modify the terms of the original contract, ~~or~~ agreement, or change order; or